

ASCII MASTER FLOW – PANEL 1/12: 1934-1946: the route to a constitution-making body

1934 M.N. Roy advances the Constituent Assembly idea
|
1935 Congress formally demands a Constituent Assembly
|
1938 Nehru specifies an Assembly elected on adult franchise,
free from outside interference
|
1940 August Offer accepts the principle of Indian constitution-making
1942 Cripps proposal offers post-war constitution-making
1946 Cabinet Mission supplies the operative scheme
+-- indirectly elected provincial representatives
+-- princely-state nominees
+-- community allocation within provincial seats
+-- population ratio broadly one seat per million

TRAP: do not attach Nehru's adult-franchise formulation to 1935.

MUST REMEMBER: The making sequence must distinguish demand, Cabinet Mission constitution, composition, committees, drafting, three readings, adoption, signing and commencement, with Articles 393-395 controlling the final legal transition.

ASCII MASTER FLOW – PANEL 2/12: Composition changed with Partition; authority changed with Independence

CABINET MISSION PLAN: 389

+-- provinces 296 = 292 Governor's provinces + 4 Chief Commissioners

+-- princely states 93

ELECTION RESULT: Congress 208; Muslim League 73; others 15

9 DEC 1946: first sitting; only 211 attended amid League boycott

|

PARTITION -> RECONSTITUTED ASSEMBLY: 299 = provinces 229 + states 70

15 AUG 1947: sovereign constitution-maker + Dominion legislature

26 NOV 1949: Constitution adopted

24 JAN 1950: 284 members signed

26 JAN 1950: Republic + provisional Parliament

TRAPS: 299 = strength; 211 = first-sitting attendance; 284 = signatories.

ASCII MASTER FLOW – PANEL 3/12: Committee architecture: distributed authorship, not seven-person mythology

EIGHT MAJOR COMMITTEES

- +-- Nehru: Union Powers; Union Constitution; States
- +-- Patel: Provincial Constitution; Advisory
- +-- Rajendra Prasad: Rules of Procedure; Steering
- +-- Ambedkar: Drafting Committee (7 members; appointed 29 Aug 1947)

ADVISORY SUBCOMMITTEES

- +-- Fundamental Rights – J.B. Kripalani
- +-- Minorities – H.C. Mookherjee
- +-- Assam tribal/excluded areas – Gopinath Bardoloi
- +-- other excluded areas – A.V. Thakkar

B.N. RAU: research + initial draft + technical advice

DRAFTING COMMITTEE: converts decisions into clauses; sat 141 days

ASSEMBLY: report -> debate -> amendment -> vote -> adopted text

ASCII MASTER FLOW – PANEL 4/12: Drafting pipeline, debate metrics and commencement articles

13 DEC 1946 Objectives Resolution moved -> 22 JAN 1947 adopted
committee reports + B.N. Rau draft -> 29 AUG 1947 Drafting Committee
FEB 1948 public Draft -> comments -> OCT 1948 revised Draft
READING 1 general -> READING 2 clause/amendment -> READING 3 passage

ASSEMBLY WORK: 11 sessions; 165 sitting days; Draft debated 114 days
AMENDMENTS: 7,635 tabled; 2,473 moved/disposed
26 NOV 1949: adopted; 16 provisions commenced immediately
24 JAN 1950: 284 signatures | 26 JAN 1950: remaining provisions commence

ARTICLES 393-395 CONTROL

393 short title | 394 commencement split | 394A authoritative Hindi text
395 repeals the 1935 Act and Indian Independence Act 1947
TRAP: Article 394, not 393, controls commencement.

ASCII MASTER FLOW – PANEL 5/12: People, offices and constitutional symbols

TEMPORARY PRESIDENT: Sachchidananda Sinha

PERMANENT PRESIDENT: Rajendra Prasad

VICE-PRESIDENTS: H.C. Mookherjee; V.T. Krishnamachari

CONSTITUTIONAL ADVISER: B.N. Rau

DRAFTING CHAIR / DRAFT PILOT: B.R. Ambedkar

CONSTITUENT BUSINESS: Rajendra Prasad

DOMINION-LEGISLATIVE BUSINESS: G.V. Mavlankar

24 JAN 1950

- +-- 284 members sign English and Hindi calligraphed copies
- +-- Jana Gana Mana adopted as National Anthem
- +-- Vande Mataram accorded equal honour as National Song
- +-- Rajendra Prasad elected first President of India

TRAP: adoption 26 Nov 1949 != signing 24 Jan 1950 != commencement 26 Jan 1950.

CONSTITUTIONAL CHOICE

- +-- RIGHTS: liberty + equality + remedies
 - | versus preventive powers, public order and social reform
- +-- FEDERALISM: provincial autonomy
 - | versus Partition-era need for an effective Union
- +-- EXECUTIVE: parliamentary responsibility
 - | versus instability and concentrated leadership
- +-- MINORITIES: cultural/educational protection
 - | versus rejection of separate political electorates
- +-- SOCIAL REVOLUTION
 - enforceable rights + Directive Principles + affirmative action

RESULT: political democracy joined an unfinished social transformation.

CLOSE DISTINCTION: 389, 299, 211 and 284 measure different things; indirect election and princely nomination do not negate the Assembly's post-15 August 1947 sovereign status.

ASCII MASTER FLOW – PANEL 7/12: Borrowed provisions became Indian constitutional adaptations

SOURCE	INDIAN ADAPTATION
UK	cabinet responsibility + parliamentary government
US	Fundamental Rights + judicial review + impeachment ideas
Ireland	Directive Principles + presidential nomination method
Canada	federation with strong Centre + residuary Union power
Australia	Concurrent List + trade provisions + joint sitting
Germany	emergency ideas, constitutionally recast
South Africa	amendment elements + Rajya Sabha election method
GoI Act 1935	machinery stripped of imperial sovereignty

TEST: borrowed device + Indian problem + altered setting = Indian rule

VERDICT: sources supplied techniques; the Assembly supplied hierarchy and legitimacy.

ASCII MASTER FLOW – PANEL 8/12: Criticism and evidence-led reply

NO ADULT-FRANCHISE ELECTION -> real mandate deficit; restricted franchise,
princely nomination, Partition and no universal rolls explain but do not erase it
CONGRESS DOMINATION -> 208/296 confirms dominance; internal diversity,
committees, dissent and public comments complicate a one-party caricature
LAWYER-MADE / OVER-LEGAL -> precision mediated federal, rights and transition conflict
COPIED -> selective borrowing was recombined and India-specific
SOCIAL UNDER-REPRESENTATION -> exclusions were real despite minority/women/Dalit voices
EXCESSIVE TIME -> 2 years, 11 months, 18 days covered Partition and clause scrutiny

VERDICT: imperfect electoral origin + substantial deliberative authorship.

ASCII MASTER FLOW – PANEL 9/12: Four PYQ controls and recurring prelims traps

2021 GS-I Q93: on 26 Jan 1950 India became a Sovereign Democratic Republic

2023 GS-I Q85: Constitution Day and Drafting Committee statements

2024 GS-I Q61: Sachchidananda Sinha = provisional President

2026 GS-I Q55: Articles 393-395

- +-- text supports statements 1 and 3

- +-- repository key is provisional/conflicting; preserve qualification

RECURRING TRAPS

389/299/211/284 | Rau/Ambekar/Assembly | adoption/signing/commencement

Rajendra Prasad/Mavlankar | parent committee/subcommittee chair

original 395 Articles + 8 Schedules versus today's totals

Debates are persuasive aids; enacted text remains supreme.

ASCII MASTER FLOW – PANEL 10/12: Exact 10/15/20-mark answer architecture

10 MARKS / 150 WORDS

1. Define the issue/demand. 2. Use 389->299 plus one exact date.
3. Add one committee-role distinction. 4. Give balanced verdict.

15 MARKS / 250 WORDS

1. Thesis. 2. Origins 1934-46. 3. Composition + sovereignty shift.
4. Resolution->committees->draft->readings. 5. Two criticisms with evidence.
6. One adaptation/debate example. 7. Graded conclusion.

20 MARKS / 250 WORDS

1. Decode directive and frame legitimacy/originality test.
2. Origin deficit: indirect election, nomination, boycott, exclusions.
3. Process defence: public draft, 7,635/2,473 amendments, 114 debate days.
4. Distributed authorship: Rau -> committees -> Drafting -> Assembly.
5. Substance: rights, federalism, social revolution, adapted borrowing.
6. Limits and counterweight in paired table. 7. Nuanced verdict.

MARKS GRABBER: metric + named institution + mechanism + qualification.

ASCII MASTER FLOW – PANEL 11/12: Articles 393-395: adoption is not commencement

ARTICLE 393 -> short title: Constitution of India

ARTICLE 394 -> specified provisions at once on 26 Nov 1949

ARTICLE 394 -> remaining provisions on 26 Jan 1950

ARTICLE 395 -> repeal of Government of India Act 1935 and Indian Independence Act 1947

24 JAN 1950 -> 284 members signed; signing is not adoption or commencement.

ASCII MASTER FLOW – PANEL 12/12: Legitimacy test and interpretive-source hierarchy

CRITIQUE: indirect election | nomination | restricted franchise | Congress predominance

REPLY: committee pluralism | reasoned debate | post-1947 sovereignty | universal franchise

DEBATES: persuasive external aid when text is ambiguous

LIMIT: enacted constitutional text and later binding doctrine prevail

VERDICT: legitimacy arose from deliberation plus a democratic constitutional settlement.

LEGAL/SOURCE LIMIT: Constituent Assembly Debates are persuasive historical aids, not enacted law; the constitutional text prevails and later doctrine may develop beyond a single framer's intention.